

The Administrative Tribunals (Procedure for investigation of misbehaviour or incapacity of Chairmen, Vice-Chairmen and other Members) Rules, 2000

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UNION OF INDIA

India

The Administrative Tribunals (Procedure for investigation of misbehaviour or incapacity of Chairmen, Vice-Chairmen and other Members) Rules, 2000

Rule

THE-ADMINISTRATIVE-TRIBUNALS-PROCEDURE-FOR-INVESTIGATION-OF-MISBEHAVIOUR-OR-INCAPACITY-OF-CHAIRMEN-VICE-CHAIRMEN-AND-OTHER-MEMBERS-RULES-2000 of 2000

Published on 7 February 2000

Commenced on 7 February 2000

[This is the version of this document from 7 February 2000.]

[Note: The original publication document is not available and this content could not be verified.]

The Administrative Tribunals (Procedure for investigation of misbehaviour or incapacity of Chairmen, Vice-Chairmen and other Members) Rules, 2000

Published vide Notification No. G.S.R. 91(E), dated 7th February, 2000

Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

G.S.R. 91(E). - In exercise of the powers conferred by sub-section (3) of section 9 read with sub-section (1) and clause (b) of sub-section (2) of section 35 of the Administrative Tribunals Act, 1985 (13 of 1985

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Administrative Tribunals (Procedure for investigation of misbehaviour or incapacity of Chairmen, Vice-Chairmen and other Members) Rules, 2000.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Extent of application.

- These rules shall be applicable to every Chairman, Vice-Chairman, Administrative Member and Judicial Member of the Central Administrative Tribunal, Administrative Tribunals for States and Joint Administrative Tribunal for two or more States established under the Act.

3.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Administrative Tribunals Act, 1985 (13 of 1985

);

(b)

"Administrative Member" means a Member of the Central Administrative Tribunal, Administrative Tribunal for a State or, as the case may be, of a Joint Administrative Tribunal for two or more States established under the Act who is not a Judicial Member within the meaning of clause (i) of section 3;

(c)

"Chairman" means a Chairman of a Tribunal and includes a Vice-Chairman authorised to act as the Chairman in accordance with section 7;

(d)

"Committee" means the Committee referred to in sub-rule (2) of rule 4;

(e)

"Judge" means a sitting Judge of the Supreme Court appointed by the President under sub-rule (2) of rule 5 to conduct the inquiry;

(f)

"Judicial Member" means a Member of a Tribunal appointed as such under the Act, and includes the Chairman or a Vice-Chairman who possesses any of the qualifications specified in sub-section (3) of section 6;

(g)

"Member" means a Member (whether Judicial or Administrative) of a Tribunal, and includes a Chairman and a Vice-Chairman;

(h)

"section" means a section of the Act;

(i)

"Tribunal" means the Central Administrative Tribunal or a State Administrative Tribunal or a Joint Administrative Tribunal established under the Act;

(j)

"Vice-Chairman" means a Vice-Chairman of a Tribunal.

(2)

Words and expressions used herein and not defined but defined in the Administrative Tribunals Act, 1985 (13 of 1985

) shall have the meaning respectively assigned to them in that Act.

4.

Committee for investigation of complaints.

(1)

If a written complaint, alleging any definite charges of misbehaviour or incapacity to perform the functions of the office in respect of a Member, is received by the Central Government, it shall make a preliminary scrutiny of such complaint.

(2)

If, on preliminary scrutiny, the Central Government considers it necessary to investigate into the allegation, it shall place the complaint together with supporting material as may be available, before a Committee consisting of the following officers to investigate the charges of allegations made in the complaint : -

(i) Cabinet Secretary

- Chairman

(ii) Secretary, Ministry of

Personnel, Public Grievances and Pensions

- Member;

(iii) Secretary, Department of

Legal Affairs, Ministry of Law, Justice and Company Affairs

- Member.

(3)

The Committee shall devise its own procedure and method of investigation which may include recording of evidence of the complainant and collection of material relevant to the inquiry which may be conducted by a Judge of the Supreme Court under these rules.

(4)

The Committee shall submit its findings to the President as early as possible within a period that may be specified by the President in this behalf.

5.

Judge to conduct inquiry.

(1)

If the President is of the opinion that there are reasonable grounds for making an inquiry into the truth of any imputation of misbehaviour or incapacity of a Member, he shall make a reference to the Chief Justice of India requesting him to nominate a Judge of the Supreme Court to conduct the inquiry.

(2)

The President shall, by order, appoint the Judge of the Supreme Court nominated by the Chief Justice of India for the purpose of conducting the inquiry.

(3)

Notice of appointment of a Judge under sub-rule (2) shall be given to the Member concerned.

(4)

The President shall forward to the Judge a copy of-

(a)

the articles of charges against the Member concerned and the statement of imputations;

(b)

the statement of witnesses, if any ; and

(c)

material documents relevant to the inquiry.

(5)

The Judge appointed under sub-rule (2) shall complete the inquiry within such time or further time as may be specified by the President.

(6)

The Member concerned shall be given a reasonable opportunity of presenting a written statement of defence within such time as may be specified in this behalf by the Judge.

(7)

Where it is alleged that the Member concerned is unable to discharge the duties of his office efficiently due to any physical or mental incapacity and the allegation is denied, the Judge may arrange for the medical examination of the Member by such Medical Board as may be appointed for the purpose by the President and the Member concerned shall submit himself to such medical examination within the time specified in this behalf by the Judge.

(8)

The Medical Board shall undertake such medical examination of the Member as may be considered necessary and submit a report to the Judge stating therein whether the incapacity is such as to render the Member unfit to continue in office.

(9)

If the Member refuses to undergo such medical examination as considered necessary by the Medical Board, the Board shall submit a report to the Judge stating therein the examination which the Member has refused to undergo, and the Judge may, on receipt of such report, presume that the Member suffers from such physical or mental incapacity as is alleged in the Member.

(10)

The Judge may, after considering the written statement of the Member and the Medical Report, if any, amend the charges referred to in clause (a) of sub-rule (5) and in such a case, the Member shall be given a reasonable opportunity of presenting a fresh written statement of defence.

(11)

The Central Government shall appoint an officer of that Government or an advocate to present the case against the Member.

(12)

Where the Central Government has appointed an advocate to present its case before the Judge, the Member concerned shall also be allowed to present his case by an advocate chosen by him.

6.

Application of the Departmental Inquiries (Enforcement of Witness and Production of Documents) Act, 1972 to inquiries under these rules.

- The provisions of the Departmental Inquiries (Enforcement of Witness and Production of Documents) Act, 1972 (18 of 1972), shall apply to the inquiries made under these rules as they apply to departmental inquiries.

7.

Powers of Judge.

- The Judge shall not be bound by the procedure to be laid down by the Code of Civil Procedure, 1908 (5 of 1908) but shall be guided by the principles of natural justice and shall have power to regulate his own procedure including the fixing of places and times of his inquiry.

8.

Suspension of Member.

- Notwithstanding anything contained in rule 4 and without any prejudice to any action being taken in accordance with the said rule, the President, keeping in view the gravity of charges may suspend the Member of the Tribunal against whom a complaint is under investigation or inquiry.

9.

Subsistence allowance.

- The payment of subsistence allowance to a Member under suspension shall be regulated in accordance with the rules and orders for the time being applicable to a Secretary to the Government of India belonging to the Indian Administrative Service.

10.

Inquiry Report.

- After the conclusion of the investigation, the Judge shall submit his report to the President stating therein his findings and the reasons therefor on each of the articles of charges separately with such observations on the whole case as he thinks fit.

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